

114	Yeo v. Jack in the Box, Inc. 2024-01438639	Motion for Summary Judgment and/or Adjudication - DENIED Defendant JDC Food Services, Inc. dba Jack in the Box (“Defendant”) moves for summary judgment against plaintiff Marie Ann Yeo’s (“Plaintiff”) causes of action for negligence and premises liability. This action arises out of a trip and fall at one of Defendant’s restaurants. Plaintiff alleges that her sandal got stuck between the floor and a table leg when she stood up, causing her to fall on her knee. The Court will not consider Plaintiff’s unpermitted and improper sur-reply filed on May 22, 2026. Defendant argues Plaintiff’s premises liability and negligence causes of action fail as a matter of law because the table base sits roughly less than 3/4 inches off the ground such that the alleged dangerous condition was trivial, the table base was open and obvious, there was no foreseeability of Plaintiff’s injury, and Defendant had no actual or constructive notice of a dangerous condition. Plaintiff testified that she saw the table and table legs as she walked up to the table. (Declaration of Caryn Ochoa, Exhibit C, at 15:21-16:4.) Plaintiff recalls the dining area as being well-lit. (Id. at 16:5-7.) There was no debris blocking Plaintiff’s view of the table or table legs. (Id. at 15:13-20.) Plaintiff estimated the toe portion of her sandal to be approximately half an inch thick or less. (Id. at 18:1-19:6.) Defendant points to the fact that the table base is roughly less than 3/4 inches off the ground to argue that the condition is a trivial defect. However, Plaintiff is alleging that her sandal got caught underneath the table base when she stood up. Therefore, the height of the table base from the top of the base to the floor is not relevant here. The relevant question is whether there was a large enough gap between the bottom of the base and the floor to create a dangerous tripping hazard caused by shoes getting caught. Defendant has not presented any evidence regarding the size of that gap.
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Defendant argues that photographs of the area clearly support the conclusion that the defect of the rise of the table base from the floor did not pose a significant risk of injury. However, the photographs submitted do not clearly depict how high the gap between the floor and the bottom of the base, where Plaintiff alleges she sandal got caught, is. Further, while Plaintiff testified that she observed the table and its legs as she walked up to the table, there is no evidence that she observed any gap between the table leg and the floor. Thus, the Court finds that Defendant's arguments that reasonable minds could come to but one conclusion that there was no dangerous condition or that the condition was open and obvious because Plaintiff saw the table and table legs fail. (Mixon v. Pacific Gas & Electric Co. (2012) 207 Cal.App.4th 124, 131; Kinsman v. Unocal Corp. (2005) 37 Cal.4th 659, 673.)

Further as to Defendant's open and obvious argument, typically, "if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition." (Kinsman, 37 Cal.4th at p. 673.) However, there is an exception to this general rule. "[I]t is foreseeable that even an obvious danger may cause injury, if the practical necessity of encountering the danger, when weighed against the apparent risk involved, is such that under the circumstances, a person might choose to encounter the danger." (Ibid.) It is plainly foreseeable that patrons at the restaurant will sit at the tables provided and encounter the table legs underneath the table while doing so. Thus, Defendant's open and obvious argument also lacks merit because Plaintiff was forced to encounter the area around the table legs by sitting at the table in the dining area, which is plainly offered to restaurant patrons. Defendant's argument that Plaintiff's injuries and the incident were not foreseeable fails for the same reason.

Defendant argues that it had no actual or constructive notice of the dangerous condition because no other

patron has ever injured themselves during the 14 years that the subject table has been in the restaurant.

Store owners “must have actual or constructive notice of the dangerous condition before incurring liability” and it is a plaintiff’s “burden to prove the owner had actual or constructive notice of the defect in sufficient time to correct it.” (Ortega v. Kmart Corp. (2001) 26 Cal.4th 1200, 1203.) “The plaintiff need not show actual knowledge where evidence suggests that the dangerous condition was present for a sufficient period of time to charge the owner with constructive knowledge of its existence.” (Id. at p. 1206.)

Here, Defendant concedes that the table has been in the restaurant for 14 years, which is a sufficient period of time to charge Defendant with constructive knowledge of its existence. Further, while evidence of prior accidents could support a finding of dangerousness of a condition, the absence of prior accidents alone is not dispositive. Therefore, the Court finds that Defendant’s argument of lack of notice also fails.

The Court declines to rule on Defendant’s evidentiary objections pursuant to Code of Civil Procedure section 437(q).

In light of all the above, Defendant’s motion is DENIED.

Moving party to give notice.